

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503734	ALFRED vs STRATE	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling: Plaintiff Arthur Alfred's UNOPPOSED Motion to Set Aside Dismissal is granted.

Trial Setting Conference is set for 9/23/26.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506013	SAID vs EXPEDIA INC.	MOTION TO VACATE DEFAULT JUDGMENT

Tentative Ruling: Defendant's Motion to Vacate Default Judgment is denied.

Although Plaintiff titles his motion as a Motion to vacate default judgment, the crux of his motion is the court's error in applying the law. In effect, Plaintiff is asking this court to review its prior ruling, effectively a motion for reconsideration. An application for reconsideration of an order must be based on new or different facts, circumstances, or law. If new law provides the basis for the application, it does not include a later enacted statute that does not contain a retroactive application. CCP §1008(f). The declaration or affidavit in support of the motion for reconsideration must state what application was made originally, when and to what judicial officer the original application was made, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. CCP §1008(a)–(b).

Under the following conditions, the losing party may make a motion before the same judge to reconsider and enter a different order (CCP § 1008(a)). Such motion must be brought before the *same judge* who made the order made *within 10 days* after service upon the party of *notice of entry* of the order; based on "*new or different facts, circumstances or law*" than those before the court at the time of the original *supported by declaration* stating the previous order, by which judge it was made, and the new or different facts, circumstances or law claimed to exist, and made and *decided before* entry of judgment.

Here, the court ruled on the Vexatious litigation motion on 3/9/26, and this motion – as considered by the court as a motion for reconsideration - was filed 5/21/26. Thus, this motion is untimely. Further, in this motion, Plaintiff does not provide any new facts, circumstances, or law that could not have reasonably presented at the time of the original hearing.